Trading Terms & Conditions

Shinsei Export / Shinsei Scrap

Effective 2025

1. Products

The Seller supplies dismantled used automobile parts.

A general reference list (“Dismantling List”) is available upon request.

In addition to the items listed, the Seller will make reasonable efforts to accommodate the Buyer’s specific part requests whenever possible, depending on vehicle availability and auction conditions.

2. Quantity and Specifications

The final quantity and specifications may vary depending on the dismantling process.

The Seller will make reasonable efforts to meet the Buyer’s requested list.

3. Price and Trade Terms

Trade Term: FOB Osaka or Kobe, Japan (Incoterms® 2020)

Prices shall be determined through mutual agreement in a fair and transparent manner.

4. Payment Terms

■ First Transaction: A deposit of JPY 1,500,000–2,000,000 (or as mutually agreed) shall be paid before any auction bidding or dismantling begins.

■ Subsequent Transactions: A deposit must be provided prior to each dismantling process.

■ Remaining Balance: The remaining balance shall be paid by T/T (telegraphic transfer) after loading and prior to release of documents. The Seller will notify the Buyer promptly once the vessel schedule and loading arrangements are confirmed.

5. Deposit Handling

The deposit will be credited toward the total purchase amount.

If the Seller is unable to perform its obligations without just cause, the deposit will be fully refunded.

If the Buyer cancels the order, delays payment, or otherwise fails to fulfill required obligations, the deposit may be retained by the Seller as reasonable compensation.

6. Auction, Transportation, and Handling Fees

Auction fees, inland transportation charges, dismantling expenses, and other related handling costs shall be borne by the Buyer. The Seller will inform the Buyer in advance of expected charges whenever possible.

7. Shipment and Delivery

Shipment will be arranged using a marine container under FOB terms at the designated Japanese port. The Seller will load the goods in a commercially reasonable manner and will inform the Buyer of shipping details as soon as they are available.

8. Bill of Lading (B/L) Release

1. The Bill of Lading will be issued after loading is completed.
2. The original B/L or a Telex Release will be provided only after the full remaining balance has been received and confirmed by the Seller’s bank.
3. Any storage fees, demurrage, or additional charges resulting from delays in payment shall be the responsibility of the Buyer.

4. No early or partial release of B/L will be arranged without written agreement from the Seller.

9. Insurance

Under FOB terms, cargo insurance shall be arranged and paid by the Buyer.

10. Condition of Goods (Used Auto Parts)

All parts are supplied AS-IS / WHERE-IS, as they are dismantled from used vehicles.

No warranty is provided regarding performance, lifespan, or compatibility unless otherwise agreed in writing. The Seller will take reasonable care during dismantling and loading.

11. Vehicle Selection Responsibility

The Buyer is responsible for selecting the vehicle model(s) to be purchased.

The Seller cannot be held liable for dissatisfaction related to the Buyer's chosen vehicle(s) or their condition, as auction vehicles vary.

12. Photo Documentation

The Seller will provide photo documentation of the dismantled parts and loading process.

These images shall serve as the reference record for the condition of the goods.

13. Storage, Demurrage, and Delay Charges

Any storage fees, port demurrage, or additional charges caused by Buyer's delayed payment or inability to receive the cargo shall be borne by the Buyer.

14. Packaging and Loading Method

Packaging and loading methods shall be determined by the Seller based on safety and container efficiency. Special requests may be accommodated when possible.

15. Force Majeure

Neither Party shall be liable for delays or non-performance due to causes beyond reasonable control, including natural disasters, war, strikes, government restrictions, epidemics, or port closures. The affected Party will notify the other Party promptly, and performance deadlines will be adjusted as needed.

16. Dispute Resolution

Any disputes shall first be resolved through friendly and good-faith consultation.

If no resolution is achieved, the matter shall be submitted to the competent court in Japan or arbitration, as appropriate.

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Shinsei Export / Shinsei Scrap — Japan